



C.H. Powell Company

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BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

DOCKET NO. 17-04 REGULATORY REFORM INITIATIVE

COMMENTS OF DAVID E. POWELL

I am David E. Powell, Treasurer of C. H. Powell Company, responsible for its NVOCC division. C. H. Powell Company is an Ocean Transportation Intermediary licensed as both an Ocean Freight Forwarder, and a Non-Vessel-Operating Common Carrier, under license number 000176NF. C.H. Powell Company operates 17 offices at major USA ports. C. H. Powell Company has an ownership interest in affiliated companies in China, India, and the Netherlands. C.H. Powell Company has more than 50 dedicated agents throughout the world. C. H. Powell Company transacts approximately 11,000 NVOCC shipments per year.

I submitted comments in June, 2008, supporting regulatory relief for NVOCCs in the area of tariff-based rate filing. I submitted comments again in June, 2010, in support of Negotiated Rate Arrangements (NRAs). I sincerely appreciate the consideration given to my comments and the comments of the shipping community by the Federal Maritime Commission in allowing NRAs. C. H. Powell Company has converted virtually all of its rate offerings to NRAs, resulting in reduced administrative expense, and more customer-specific pricing, desired by shippers. I submitted additional comments in May 2015, in support of allowing modification of NRAs by mutual agreement between an NVOCC and a shipper.

The Commission is now seeking comments that will be responsive to the recent Executive Order issued to federal agencies to identify regulations that:

- a) eliminate jobs, and inhibit job creation;
- b) are outdated, unnecessary, and ineffective;
- c) impose costs that exceed benefit; and
- d) are inconsistent, and interfere with regulatory policy.

The FMC is specifically requesting that the shipping public provide comments on ways to make the Commission's regulations less burdensome and more effective in achieving the objectives of the Shipping Act.

C. H. Powell Company continues to support consideration of increasing the flexibility of NRAs by allowing them to be modified from time to time by mutual agreement, as well as allowing them to incorporate additional service considerations, such as credit terms, surcharges, and minimum volumes. While not a user of NVOCC Service Arrangements



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(NSAs), C. H. Powell Company appreciates recent FMC efforts to ease the filing deadlines for NSA amendments, and strongly encourages the Commission to eliminate the need to file NSAs at all.

When considering the intent of the Executive Order which has triggered the current request for comments, I come to the conclusion that now is the time to eliminate all tariff filing requirements for NVOCCs, whether via Tariff, NRA, NSA, or Co-load Agreement. Such requirements are "outdated, unnecessary, and ineffective." They continue to impose costs on compliance-minded NVOCCs, with virtually no corresponding benefit for the shipping public. Rather than protect the public, NVOCC filing requirements only inhibit the market flexibility of NVOCCs subject to the scrutiny of the FMC, to the benefit of those which are not, and thus serve to inhibit job creation in the dynamic, competitive U.S. logistics sector.

My company is a member of the NCBFAA and fully supports the Association's past efforts to eliminate burdensome and unnecessary regulations. As the NCBFAA has pointed out in a number of prior comments, there is no public benefit to continue to require NVOCCs to publish rate tariffs, as they are not used by shippers for any purpose. On the other hand, rate tariffs and even NRAs are costly to establish and maintain and reduce our flexibility and ability to maintain a competitive presence in the industry. We accordingly urge the FMC to exercise its authority at this time to totally exempt NVOCCs from having to publish rates in any format.

Thank you for considering my views.

Submitted on June 27, 2017

David E. Powell